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The Gazette of the Democratic Socialist Republic of Sri Lanka
EXTRAORDINARY

අංක 1979/5 - 2016 අගෝස්තු මස 08 වැනි සඳුදා - 2016.08.08
No.1979/5 - MONDAY AUGUST 08, 2016

(Published by Authority)

PART IV (A) — PROVINCIAL COUNCILS

Provincial Councils Notifications

NORTHERN PROVINCE PROVINCIAL COUNCIL

Northern Province Pre-School Education Statute No. 03 of 2015

NOTICE is hereby given that the Northern Province Provincial Council has adopted the Northern Province Pre-School Education Statute No. 03 of 2015 on 09th June 2015 and that the Hon. Governor Northern Province has given his assent to it on 25th July 2016.

K. THEIVENDRAM,
Secretary,
Northern Provincial Council.

Council Secretariat,
A9 Road,
Kaithady,
04th August 2016.

NORTHERN PROVINCE PROVINCIAL COUNCIL

PRE-SCHOOL EDUCATION STATUTE NO. 03 OF 2015

A Statute to provide for the Registration, Regulation, Supervision and Monitoring of Pre-Schools in the Northern Province, the Introduction of Model Pre-Schools and for matters connected there with or incidental thereto.

Be it enacted by the Northern Provincial Council of the Democratic Socialist Republic of Sri Lanka as follows :-

- | | |
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| 01. This Statute shall be cited as the Northern Province Council Pre-School Education Statute No. 03 of 2015 and shall come into force on such date as the Governor of the Northern Province may give his assent to the Statute. | Short Title and
Date of Operation |
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PART I

PROVINCIAL POLICY ON PRE-SCHOOL EDUCATION

Provincial Policy
on Pre-School
Education

02. (1) The Board of Ministers of the Northern Provincial Council shall, from time to time, approve and adopt the Pre-School Education Policy of the Northern Province in order to ensure the provisions of total, comprehensive and lively pre-school education to the children in the Province.
- (2) It shall be the duty of the Minister in charge of the subject of education in the Northern Province to ensure proper administration of Pre-School Education in the Northern Province and for the implementation of the provisions of this Statute and the Provincial Pre-School Education Policy as approved by the Board of Ministers.
- (3) It shall be the duty of the Minister to consider the draft Provincial Policy on Pre-School Education submitted to him by Pre-School Advisory Committee (hereinafter established) Having made his observations, where necessary, on the draft Policy, the Minister shall forward it to the Northern Provincial Council through the Board of Ministers for approval.

PART II

ESTABLISHMENT OF THE PRE-SCHOOL EDUCATION UNIT OF THE NORTHERN PROVINCE

Establishment of
the Pre-School
Education Unit

03. There shall be established a Northern Province Pre-School Education Unit (hereinafter referred to as “the Pre-School Education Unit”) which shall operate under the control and supervision of the Provincial Ministry of Education of the Northern Provincial Council.
04. (1) There shall be appointed a Director of Pre-School Education (hereinafter referred to as the “the Director”) who shall be a Grade I Officer of the Sri Lanka Education Administrative Service (hereinafter referred to as “the S. L. E. A. S.”) to head the Pre-School Education Unit. Where no suitable Grade I Officer could be appointed, there shall be appointed a Grade II Officer of the S. L. E. A. S. to head the Pre-School Education Unit in an acting capacity until a Grade I Officer is appointed.
- (2) There may be appointed an Additional Director of Pre-School Education and/or Deputy Director of Pre-School Education who shall be a Grade I Officer or Grade II Officer of the S. L. E. A. S. as the case may be, to the Pre-School Education Unit. The Additional Director and/or Deputy Director shall assist the Director in the discharge and performance of his duties and functions and exercise of his powers, including the coordination of the activities of the Pre-School Education Unit. The Director may delegate, in writing, any of his powers, duties and functions under this Statute to the Additional Director and/or Deputy Director.
- (3) There shall be appointed one Assistant Director of Pre-School Education to each of the twelve Education Zones in the Northern Province. The Assistant Directors shall be a Grade III Officer of the S. L. E. A. S. The Assistant Directors shall assist in and coordinate all Pre-School activities in their respective Zones. The Director may delegate, in writing, any of his powers, duties and functions under this Statute to the Assistant Director/s.

05. The objectives of the Pre-School Education Unit shall be -

The Objectives of
the Pre-School
Education

- (1) the registration, regulation and supervision of the administration of Pre-Schools operated in the Province ;
- (2) the formulation of the Provincial Policy on Pre-School Education ;
- (3) the implementation of the Provincial Policy on Pre-School Education as approved by the Board of Ministers ;
- (4) the preparation of plans (pre-school development plan and annual implementation plan) and their implementation in the Province ;
- (5) the stipulation and maintenance of standards for pre-school education ;
- (6) the improvement and enhancement of knowledge, necessary skills and appropriate attitudes among teachers engaged in the Pre-School Service of the Province ;
- (7) the conducting of awareness programme for pre-school children, their parents and others on the importance of pre-school education ;
- (8) the coordination of functions of the Government Institutions including Higher Educational Institutions, Non-Government Organizations and Private Institutions engaged in activities connected with pre-schools in the Province and facilitating inter-action among them to improve the standard of pre-school education in the Province ;
- (9) the stipulation and maintenance of standards for infrastructure and other facilities to be may available in pre-school ;
- (10) the exercise, performance and discharge of such powers, duties and functions as are conferred, or imposed on, or assigned to the Pre-School Unit by or under this Statute ; and,
- (11) Monitoring of the above mentioned activities.
- (12) Establishment of model Pre-School.

06. The Director shall be responsible to the Minister and the Board of Ministers for the due and proper implementation of the objects of the Pre-School Education Unit provided in this Statute and administration of the provisions of it.

07. The Pre-school Education Unit shall exercise all or any of the following powers ;

Powers of the Pre-
School Education
Unit

- (1) to register and supervise the management of pre-schools and similar institutions, irrespective of the name they are referred to, engaged in education cum welfare related activities of children aged between 2 1/2 years and up to school going age operating within the Province ;
- (2) to provide guidance and assistance where necessary to improve the pre-school educational activities in the Province ;

- (3) to provide facilities and assistance to cater to the requirements of children with special needs ;
- (4) to construct and maintain educational, library and training institutions in order to develop and enhance the knowledge and skills of pre-school teachers and to award them certificates.
- (5) to conduct in-service training programmes and workshops to upgrade the capacity of pre-schools teachers ;
- (6) to prescribe and adopt a system of grading pre-schools in the Province according to the standards maintained and the facilities made available in them ;
- (7) to set down administrative and management standards for all pre-schools functioning in the Province ;
- (8) to organize and conduct awareness programmes for parents of pre-school children and others on the importance of pre-school education ;
- (9) to visit, inspect and conduct checks of pre-schools operating within the Province ;
- (10) to inquire into complaints made by anyone against any pre-school operating within the Province and take appropriate actions of such complaints ;
- (11) to receive fees in accordance with any rules providing for the same ; and
- (12) to do all such other acts and things incidental to the powers aforesaid and/or as may be required in order to further the objects of the Pre-School Education Unit ;
- (13) Establishment of model Pre-School ;

PART III

PRE-SCHOOL EDUCATION ADVISORY COMMITTEE

Pre-school
Education
Advisory
Committee

08. (1) There shall be established a Pre-School Education Advisory Committee (hereinafter referred to as the “Advisory Committee”) of the Northern Provincial Council.
- (2) The Advisory Committee shall consist of the following members appointed by the Minister -
 - (i) Ex-officio members-
 - (a) The Secretary of the Ministry of Education of the Northern Provincial Council ;
 - (b) The Provincial Director of Education of the Northern Provincial Council ;
 - (c) The Provincial Director of Health Services of the Northern Provincial Council ;

- (d) The Commissioner of Probation and Child Care Services of the Northern Provincial Council ;
- (e) The Commissioner of Local Government of the Northern Provincial Council ;
- (f) The Legal Consultant or Legal Advisor of the Northern Provincial Council ;
- (g) The Director of Pre-School Education of the Northern Provincial Council ;

and

(ii) Appointed members ;

- (a) Three persons with educational qualifications and experience in the fields of early childhood development, child psychology, child health and nutrition, child rights or pre-school management ;
- (b) Two pre-school teachers with teaching experience of not less than ten years ;
- (c) Two principals and/or managers of pre-schools operating within the Province ; and
- (d) Three persons representing the civil society of the Province.

(iii) Appointed members shall be appointed by the Minister after obtaining approval of the Northern Provincial Council.

- (3) The Minister shall as far as possible ensure gender and geographical representation in appointing the Members to the Advisory Committee under paragraph (ii) of sub section (2) of this Section.
- (4) The Secretary of the Provincial Ministry of Education shall be the Chairperson of the Advisory Committee and the Director of Pre-School Education of the Northern Provincial Council shall be the Secretary of the Advisory Committee.
- (5) A member appointed under paragraph (ii) of sub-section (2) of this section (hereinafter referred to as “an appointed member”) shall hold office for a period of two years from the date of appointment, unless he or she vacates his or her office by resignation, death or any other cause.
- (6) An appointed member shall be deemed to have vacated his or her office if he or she fails to attend three consecutive meetings of the Advisory Committee without proper notice.
- (7) An appointed member may be removed from office by the Minister for acceptable reason assigned and such order shall be laid before Northern Provincial Council.
- (8) An appointed member shall cease to be a member if he or she becomes disqualified under the provisions of Section 09, of this Statute.

- (9) An appointed member may resign from his or her office by a letter addressed to the Minister to that effect.
 - (10) When the membership of an appointed member falls vacant by virtue of any provision of the above sub-sections, the Minister shall appoint a person as a member for the unexpired period considering the category the vacated member belonged as per the provisions of paragraph (ii) and (iii) of sub-section (2) of this Section.
 - (11) An appointed member is eligible for reappointment except where the person had been removed from office by the Minister under sub section (7) of this Section or has become disqualified under the provisions of this Statute.
 - (12) The quorum for the meetings of the Advisory Committee shall be seven
 - (13) The Advisory Committee shall conduct its meeting in accordance with democratic principals and decisions shall be arrived as far as possible through consensus.
 - (14) The Advisory Committee shall meet at least once in four months. Whenever necessary the Minister may direct the convening of special meetings.
 - (15) No decision or action taken by the Advisory Committee shall be invalid solely on account of a vacancy in the Advisory Committee and/or defect in the appointment of a member.
 - (16) The Minister may, with the approval of the Board of Ministers determine an allowance which may be paid to the members who participate at the meetings of the Advisory Committee.
09. A person shall be disqualified to be a member or continue to be a member of the Advisory Committee if he or she -
- (1) is not a Citizen of Sri Lanka or ceases to be a citizen of Sri Lanka ;
 - (2) becomes of unsound mind ;
 - (3) becomes insolvent ;
 - (4) is convicted by a court of law and is serving or has served a term of imprisonment ;
 - (5) is having monetary dealings or commercial transactions or commitments with the Provincial Administration of the Northern Province which expressly or impliedly compromises or appears to compromise his or her position of neutrality and objectivity ;
 - (6) is pronounced by a court of law to be guilty of an offence under this Statute.
10. (1) It shall be the role and function of the Advisory Committee to advice the Minister on -
- (i) the drafting of the Provincial Policy on Pre-School Education for the Northern Province ;

- (ii) the preparation of plans (pre-school development plan and annual implementation plan) of the Province ;
 - (iii) the stipulation and maintenance of standards for pre-school education ;
 - (iv) the ways and means of improving and enhancing knowledge, necessary skills and appropriate attitudes among teachers engaged in the pre-school Service of the Province ;
 - (v) the determination of the objects of the Pre-School Education Unit of the Province ;
 - (vi) advice on the effective implementation of the provisions of this Statute ;
 - (vii) the preparation of the curriculum to be adopted and implemented in the Pre-Schools in the Northern Province with the guidance of the National Institute of Education ; and
 - (viii) any matter referred to it by the Minister requiring the Committee to provide its observations and recommendations on such matter.
- (2) The Advisory Committee shall have the power to set up sub-committees in the discharge of its role and functions.

PART IV

MINIMUM STANDARDS RELATING TO PRE-SCHOOLS

11. (1) Every Pre-School established and operated within the Northern Province shall adhere to and maintain the minimum standards in relation to the physical, infrastructure and other facilities and amenities as prescribed in Schedule I of this Statute. Minimum Standards Relating to Pre-Schools
- (2) No Pre-School may be established or operated within 100 meters radius of an environment which is harmful, detrimental, injurious or dangerous to the physical and psychological well-being of children.

PART V

REGISTRATION OF PRE-SCHOOLS

12. (1) It shall be the responsibility and duty of every owner, proprietor, manager, principal or head of every Pre-School functioning in the Province when this Statute comes into operation to apply, in the prescribed form given in Schedule II of the Statute, for registration of such Pre-School with the Pre-School Education Unit of the Province within a period of three months from the operation of this Statute. Registration of Pre-Schools
- (2) Subject to sub-sections (3) and (4) of this Section, any person who being the owner, proprietor, manager, principal or head of a Pre-School which is being operated, fails to apply for registration of the Pre-School in the prescribed form within the period prescribed in sub-section (1) of this Section to the Pre-School Education Unit, shall be deemed to be in breach of sub-section (1) of this section.

- (3) Where the owner, proprietor, manager, principal or head of a Pre-School is of opinion that he or she is unable to bring the physical, infrastructure and other facilities and amenities available at his or her pre-school to the prescribed standards within the stipulated period, he or she shall write to the Director of Pre-School Education requesting an extension of time to reach and maintain the minimum standards stipulated by or under the provisions of this Statute. It shall be the duty of such person to indicate in detail and clearly the time-frame within which he or she would attain the stipulated minimum standards with respect of the facilities and amenities.
 - (4) When a written request under sub-section (3) of this section is received, the Director of Pre-School Education may grant such extension of time subject to such terms and conditions which the person requesting the extension shall fulfill. The Director shall have authority to impose an additional fee of 50% of the prescribed departmental fee which shall be paid by the applicant. Provided however, no such extension or extensions beyond a period of one year in total from the end of the period prescribed in sub-section (1) of this section, may be granted to anyone by the Director of Pre-School Education.
 - (5) Where the Director is satisfied that the applicant for registration has fulfilled, in respect of his or her Pre-School, the minimum standards with regard to physical, infrastructure and other facilities and amenities stipulated by or under the Statute, the Director shall register the Pre-School with the Pre-School Education Unit and issue the person a Certificate of Registration after the prescribed departmental fees are paid by him or her.
13. (1) Any person who wishes to establish a Pre-School within the Province after this Statute comes into operation, shall apply in the prescribed form given in Appendix I to the Pre-School Education Unit.
- (2) No person may commence a Pre-School without having obtained a Certificate of Registration from the Director of Pre-School Education.
 - (3) It shall be the responsibility and duty of the Director of Pre-School Education to inform the applicant under sub-section (1) above, in writing within a period of two months from the receipt of the application whether it is accepted for registration or not, and the reasons for denial of registration where the request for registration is being denied.
 - (4) When the Director decides to deny registration due to lack or inadequacy of physical, infrastructure and other facilities or amenities, he or she shall indicate in the letter of denial the shortcomings and inadequacies which made him or her to deny registration.
 - (5) In exceptional cases, the Director of Pre-School Education may take a longer time than what is stipulated in sub-section (3) of this section, provided it shall not exceed six months in total.
 - (6) Where the Director is satisfied that the applicant for registration under sub-section (1) above has fulfilled, in respect of his or her Pre-School, the minimum standards with regard to physical, infrastructure and other facilities and amenities stipulated by or under this Statute, the Director shall register the Pre-School with the Pre-School Education Unit and issue the person a Certificate of Registration after the prescribed departmental fees are paid by him or her.

14. (1) An applicant who is aggrieved by the decision or action by the Director of Pre-School Education under sections 12 or 13 above, may prefer an appeal to the Minister against such decision or action within a period of two months from the date thereof.
- (2) Where the Minister receives an appeal, he or she shall refer in to the Advisory Committee or to a Sub-Committee of the Advisory Committee for its observation and recommendations, Having received the observations and recommendation sent by the Committee, the Ministry shall have authority to vary or reverse the decision or action taken by the Director and communicate the same to the appellant. The Minister may impose such terms and conditions which in his or her opinion are desirable or necessary.
- (3) The decision of the Minister shall be communicated to the appellant within a period of four months of the date of receipt of the appeal. The decision of the Minister shall be final and conclusive.
15. (1) The Board of Ministers, on the recommendation of the Minister, shall have authority to stipulate the amount of departmental fee for registration of Pre-School with the Pre-School Education Unit.
- (2) The amount of fees decided by the Board of Ministers shall not come into operation until it is presented to the Provincial Council and approved by the Provincial Council.
- (3) The Board of Ministers shall have authority, on the recommendation of the Minister, to alter, increase or decrease the amount so decided. Any alternation, increase or decrease shall come into operation only when it is approved by the Provincial Council.
16. (1) The Director of Pre-School shall maintain a Register of Pre-Schools that are operating in the Province.
- (2) The Register of Pre-School shall contain particulars such as the name of the Pre-School, its address, contact details, date of establishment, date of registration, name and address of the proprietor and/or principal *etc.*
- (3) Every registered Pre-School shall be provided with a registration number and a Certificate of Registration by the Director.
- (4) The Director shall have the power to cancel the registration of a registered Pre-School if the Director, after following due process which includes the right to a hearing of the proprietor and/or head of the Pre-School, is satisfied that the Pre-School is not administered according to the minimum standards stipulated by or under this Statute and if the management or administration of the Pre-School have not taken adequate and meaningful steps to ensure that the activities of the personnel involved in or connected to the functioning of the Pre-School have been prejudicial to the general physical and psychological welfare of the children or for any other valid and reasonable ground.
- (5) A person aggrieved by the decision or action of the Director under sub section (4) of this section may appeal against such decision or action to the Minister within a period of two months.

- (6) Where the Minister receives an appeal, he or she shall refer it to the Advisory Committee or to a Sub-Committee of the Advisory Committee for its observation and recommendations. Having received the observations and recommendations sent by the Committee, the Minister shall have authority to vary or reverse the decision or action taken by the Director and communicate the same to the appellant. The Minister may impose such terms and conditions which in his or her opinion are desirable or necessary.
- (7) The decision of the Minister shall be communicated to the appellant within a period of four months from the date of receipt of the appeal. The decision of the Minister shall be final and conclusive.

PART VI

REGISTRATION OF PRE-SCHOOL TEACHERS

Registration of
Pre-School
Teachers

17. (1) There shall be maintained, by the Director of Pre-School Education, a Register of Pre-School Teachers who work in Pre-Schools within the Province.
 - (2) No person shall be eligible to apply to have his or her name on the Register of Pre-School Teachers of the Province unless he or she satisfied the following qualifications.
 - (i) he or she has passed, in not more than two sittings, in six subjects including Mathematics and a Credit in Tamil Language (in the case of Tamil Medium teachers) or a Credit in Sinhala Language (in the case of Sinhala Medium teachers) ; in the case of English Medium teachers the person shall have obtained a Credit in English Language as well ; and
 - (ii) he or she has obtained a Diploma in Early Childhood Development, after having followed a minimum of one year programme, from an institution recognized by the Advisory Committee and approval by the Board of Ministers.
 - (3) A person who satisfies the qualifications mentioned in sub-section (2) of this section and who is also employed as a Pre-School Teacher at a registered Pre-School in the Province can make an application, in the prescribed form as given in Schedule III of this Statute, to the Director of Pre-School Education to register him or her as a Pre-School Teacher.
 - (4) After verifying the veracity of the particulars given by the applicant under sub-section (3) of this section, the Director shall register the name of the person as a Pre-School Teacher and place it on the Register of Pre-School Teachers maintained by him or her. The said teacher shall be issued by the Director an Identity Card indicating that he or she is a registered Pre-School Teacher.
18. (1) Persons who do not possess the qualifications stipulated in sub-section (2) of section 17, but serving as a Pre-School Teacher at a registered Pre-School in the Province at the time when this Statute comes into operation, shall obtain the said qualifications within a period of three years from the date of operation of the Statute.
 - (2) The Minister may extend the period of three years by one year at a time ; provided that the total period given to a person to obtain the stipulated qualifications shall not exceed a maximum of six years from the date of coming into operation of this Statute.

- (3) No person shall be recruited to work as a Teacher in any Pre-School if he or she does not satisfy the educational qualifications prescribed in sub-section (2) of section 17 of this Statute after the date of operation of this Statute. However any person who has obtained Pre-School Diploma certificate prior to the date on which this Statute comes into operation may be registered.
- (4) Notwithstanding anything contrary contained in the above provisions, a person who has been serving as a Pre-School teacher in a Pre-School in the Province for a period of not less than ten years at the time this Statute coming into operation, shall be registered and issued with an Identity Card.
- (5) The Director of Pre-School Education shall have the authority to refuse to register a person as a Pre-School Teacher if the person has not fulfilled the educational qualifications or has not been employed as Pre-School Teacher in a registered pre-school.
- (6) The Director may also have the authority to cancel the registration of a Pre-School Teacher if it is found that the information furnished at the time of registration of the person is found to be false and/or misleading. The Director shall accord the person against whom such action is being contemplated the right to a hearing.
- (7) Subject to the above provisions of this Section, a Pre-School teacher who fails to obtain the necessary basis qualifications within the specified time shall leave the service and the Director shall have the authority to issue such an order of discontinuance.

PART VII

REMUNERATION AND OTHER PAYMENTS

19. (1) Every registered Pre-School teacher shall be paid monthly at least a sum of Rupees Six Thousand (Rs. 6,000/-) by the Pre-School administration as allowances for the services he or she renders or such other sum as may be determined from time to time by the Minister. Remuneration and Other Payments
- (2) There shall be appointed a Coordinator for each Education Division in the Province. The Coordinator shall function under the direction and supervision of the Director, Early Childhood Development and the Assistant Director of Education attached to the respective Education Zone.
- (3) The Coordinators shall be paid a monthly travelling allowance and a monthly stationery allowances as shall be decided by the Minister on the recommendation of the Advisory Committee. The decision of the Minister shall be submitted to the Board of Ministers for its approval and thereafter be tabled in the Provincial Council.
- (4) The owners, proprietors, non-governmental organizations or institutions that have been paying a monthly salary or allowance to such preschool teachers shall continue to pay, without reduction, the same salary or allowance.
- (5) Any owner, proprietor, non-governmental organization or institution that discontinues the payment of salaries or allowances to such preschool teacher shall be deemed to be acting in contravention of the provision of this Statute.

PART VIII

OFFENCES AND PUNISHMENTS

Offences and
Punishments

20. (1) (i) Any person who acts in breach of the provisions of this Statute or any other provisions made under this Statute shall be guilty of an offence.
- (ii) Any person who causes disturbance or obstructs an officer in the performance of his or her duties under this Statute or under any other rules made under this Statute shall be guilty of an offence.
- (iii) Any person who aids or abets any other person in the commission of an offence or offences under paragraph (i) and (ii) of this Section shall be guilty of an offence.
- (2) Any person who is found guilty of an offence under this Statute or any other provisions made under this Statute by a Magistrate may be imposed a fine of not less than rupees five thousand (Rs. 5,000/-) and not more than rupees fifty thousand (Rs. 50,000/-) and/or term of imprisonment of either description of not more than six months when found guilty in a summary trial before the Magistrate.
- (3) In addition to the punishment imposed under sub-section (2) of this section, the Magistrate shall have authority to order the cancellation of the registration of a pre-school and the closure of the Pre-School.
21. (1) The Minister shall have the power to make rules under the provisions of this Statute where such rules are needed to give effect to the objectives and purposes of the provisions of this Statute.
- (2) Every such rule shall be published in the Government Gazette and shall be operative from the date of publication or from a later date specifically mentioned in the rule.
- (3) The rules so made shall be placed, within three months from the date of publication in the Government Gazette, before the Provincial Council for its approval and any rule not approved by the Provincial Council shall be deemed to have been repealed from the date of non approval without prejudice to any action taken under the said rule.
- (4) The Minister shall cause to be published, in the Government Gazette, the date of repeal of any rule which is deemed to have been repealed due to non approval by the Provincial Council.

PART IX

INTERPRETATION

Interpretation

22. In this Statute unless the context otherwise requires

“Provincial Council” means the Northern Provincial Council ;

“Province” means the Northern Province ;

“Minister” means the Minister in charge of the subject of Education in the Board of Ministers of the Northern Province ;

- “Board of Ministers” means the Board of Ministers of the Northern Provincial Council ;
- “Director” means the Director of Pre-School Education appointed under the provisions of this Statute ;
- “Pre-School” means and includes any institution, by whatever name it is called, which operates for the purpose of development of children between the age of 2 1/2 and up to school going age in the Province ;
- “Prescribed activities” means engaging in activities unsuitable for the development of physical, mental emotional, social, linguistic, environmental, aesthetic skills and un-virtuous habits that will affect the development of children of ages between 2 1/2 and up to school going age.
- “Advisory Committee” means the Pre-School Education Advisory Committee established under the provisions of this Statute ;
- “Pre-School Teacher” means a person who is functioning or recruited and working as a Pre-School Teacher ;
- “Children with special education needs” means children of pre-school age in a physically and/or psychologically in a below normal condition certified by a Medical Board ;
- “A person” means a person or an entrepreneur of voluntary organization or statutory body which conducts a preschool or a teacher who serves as a preschool teacher or any employee or an outsider or outsiders ;
- “Basic sports equipment” means equipment used for the activities of climbing, hanging, floating, swinging, slipping, creeping and throwing ;
- “Damaging or dangerous place” means, a place where public halls or wine shops, film halls, video centers, funeral halls, fish and meat stalls, unprotected factories, garbage collecting yards, place which is heavily subjected to noise or air pollution, place where poisonous animals can take resort ; “open wells, ponds, streams and water ways, rivers tanks and areas adjoining high ways roads and railways tracks or dangerous slopes.

23. In the event of any inconsistency between the Tamil text and the Sinhala or English texts of this Statute, the Tamil text shall prevail.

Tamil Text to prevail in the event of an inconsistency

SCHEDULE I

THE MINIMUM STANDARDS A PRESCHOOL SHOULD POSSESS

Physical resources

Location

- * The venue chosen for Preschools should not be in the vicinity of liquor shops, vedio shops, graveyards, weekly fairs, bus depots, factories, garages or garbage disposal areas and malicious places like electric transformers.
- * It should not be located in noisy, dangerous or air polluted area.
- * It should be a place where there's no undergrowth with creepers, and it should be clean and beautiful.
- * Whether it is rural or urban surrounding the preschool should be fenced or with parapet walls, and its main gate should be protective.
- * The premises should not be closer to wells, ponds, streams, rivers, lakes and slope areas.
- * The main entrance should not face the main road.

- * There should be shady trees and beautiful plants in the premises.
- * There should be an area for sand and water games and ample space to keep outdoor equipment like swing, climbing bar and slides.

Buildings

- * The building should be appropriate for the child's health and safety
- * It should be strongly built with solid ground and roof.
- * The building should have ample space for learning and playing, with at least 20 square feet per child
- * There should be proper lighting and ventilation and the classrooms should be protected from strong wind and rain.
- * 1/7th of the walls should be left for doors and windows
- * The wall should be 1m high from the floor level if the classrooms are with half walls. Measures should be taken to protect the children from hot sun and rain.
- * Appropriate space on the walls to display the creative work of the children.
- * There should be a room to store the records, toys, and other materials that to be protected.
- * Kitchen facilities to cook food.
- * A sick room or resting room.
- * The walls should be colourfully painted to be attractive.

Furniture and other materials

- * Specillay designed desks and chairs (desks 2 feet high from the floor, chairs 1m high up to the seat and its back rest 1m high from set level)
- * There should be blackboard fixed to the wall allowing the children to work freely.
- * Teacher's table and chair (one for each teacher)
- * Sufficient mats and carpets
- * A board to display the creative work of the children
- * Racks and cupboards at the eye level of the children to keep the materials
- * Notice board
- * Outdoor and indoor games, puzzles, books, musical instruments
- * Cups, plates, water jars, and other utensils that can be used during meals time, and appropriate preparations for cooking and for collecting water.
- * Shelves and hooks for the children to keep their bags, bottles and extra clothes.
- * Broom sticks, eekle brooms, dustbins and rugs that can be handled by the children

Water and hygiene

- * Drinking water facilities (wells and taps), facilities to save boiled water (jars or earthen pots)
- * Sufficient number of toilets designed specially for the young children (minimum 2 toilets for 10-20 children) if there is no tap water there should be a proper container to collect water and soap to wash hands.
- * A place to keep soap to wash hands before and after meals and a place wash hands and legs after outdoor play
- * Duster, dustbin and waste disposal methods

Features needed to register Child Development Centers

Physical environment and the facilities

Location

- * Easy access
- * Away from inappropriate places that attract the children (liquor shops, fish or meat stalls)

- * Away from places that can harm the children, and be safe (open walls, ponds and slope areas)
- * Appropriate place for the health of the children

Premises

- * It should be securely fenced or with parapet walls
- * Main entrance should be properly secured
- * The premises should be clean and there should be no undergrowth
- * The outdoor play area should be equally shaded
- * The outdoor play area should be with ample space for climbing, jumping, balancing and swinging activities, and the equipment.

Building

- * Permanent
- * Minimum space for a child is 20 square feet
- * Sufficient light and ventilation
- * Half walls should be 1m high from the ground
- * Walls should be attractively painted
- * Building should be properly maintained
- * It should be used only for the activities of the development center
- * Even it's used for some other purpose children's play materials and their learning activities should not be disturbed

Available facilities

- * Sufficient wall area, boards and shelves to display the creative work of the children
- * Office room
- * Store room
- * Kitchen
- * Sick room or a safe place for the sick children
- * Flushing toilets and water facilities appropriate for the children (one for 10 children)

Furniture, equipment, facilities

- * Desks and chairs made of light wood appropriate for the children
- * Teacher's tables and chairs
- * Cupboards to keep the documents
- * Black boards on the walls for the children
- * Racks at the eye level of the children to keep the learning/play materials
- * Pictures and books and a place to keep them
- * Facilities to display the creative work of the children
- * Utensils to cook food, food covers to protect them and vessels to collect water
- * Facilities to boil and save water
- * Rack and hooks for the children to keep their bags and bottles

Cleaning facilities

- * Water available in well or taps
- * Sufficient water in the toilets
- * Boiled water to drink
- * Places with sufficient water to wash before and after meals, after outdoor play and after using the toilet.
- * Ways to dispose waste properly

Maintenance of hygiene and nutrition

- * Develop healthy habits among children
- * Pay daily attention to the hygiene and cleanliness of the children
- * Should serve nutritional food daily
- * A first aid box with necessary medicine
- * Maintain health records of the children

Learning and healthy environment

- * Using the environment and the premises for the children to observe and develop skills
- * A place for the children to play alone and in group
- * Equipment for outdoor play (for example, swing, climbing bar, walls, *etc.*)
- * Arrangements for sand and water games
- * Containers, shapes and solids in different sizes to play the sand and water games
- * Sufficient indoor learning equipment and experiences should be able to develop the creativity, natural movements, rising skills of the children
- * There should be play circle, eco circle, art circle, music circle, water circle, sand circle and other learning circles
- * Appropriate stimulations and learning experiences should be proved to the children with special needs

Psycho- Social Environment

- * An environment without threatening objects like canes
- * Giving chances for the children to freely choose and engage in activities
- * Helping them to engage in activities with aims to achieve skills, happily wearing shoes and clothes with interest, and not to depend on others for learning
- * Giving enough chances to play together, help others, share resources, respect the needs and views of other children
- * Building up emotions like rights, possession and mutual responsibility

Management levels

Management levels explain how a pre-school should be handled methodically and effectively. Maintain some documents and providing facilities to conduct religious and cultural activities in the center are essential for an effective management.

The following documents should be available :

- * Admission register ;
- * Attendance register for the children
- * Attendance register for the teachers
- * Parents' meeting register and report
- * Register with contact details of the guardians contact at emergency
- * Teachers/caretakers bio data
- * Health records of the children
- * Progress records of the children
- * Material log entry
- * Book of information on incidents
- * Financial reports
- * Term/Yearly syllabus and planning
- * Management meeting reports

Religious Environment

- * Attending religious worship with the consent of the parents
- * Separate room for religious worship
- * Special celebrations to mark religious festivals

Staff requirements

- * 1 teacher/caretaker for 15 students
- * Teacher/caretakers should possess at least one year training in Pre-school Diploma from an institute affiliated to the Government
- * Should possess 6 passes, including mathematics, in the GCE O/L Examination with a distinction for language and 3 passes in the GCE A/L
- * Teachers/caretakers should have service training

Assistants

- * Cooking, cleaning after meals, cleaning the building and the premises

support from the parents and the management

- * There should be a Management Committee

Daily work plan

The activities of the Development Center includes the following

- * Welcome with greeting, hygienic activities
- * Religious observations
- * Physical development activities
- * Short break
- * Indoor activities
- * Language, Mathematics, Environment, Creative work, Socio-Emotional stimulation
- * Meal time
- * Free play combined with learning corners
- * Group/individual play
- * Developing aesthetic sense through music, singing and drama
- * Story narration
- * Reemphasis
- * Maintain cleanliness - class room discipline, keeping the materials on their proper places
- * Greeting at the end of the day's work
- * Getting back homes

Registration Number

Office use

SCHEDULE II

Pre-school Registration Form - 20.....

District :

Educational Zone :

Educational Division :

Name of the Pre-school :

Medium :

Address :

GS division and number :

Registration number if already registered :

Organization that registered :

Date on which the Preschool commenced :

Number of students : MaleFemale..... Total

3 years old4 years old5 years old

Organization that conducts the Pre-school :

Name of the person to be contacted :

Address :

Telephone Number :

Details of the Teachers

Name	Educational Qualification				Diploma	Monthly Salary	Providing Organization	Telephone Number
	Age	Service Period	O/L	A/L				

Physical Resources

The area of the Pre-school 1/2 Km/1Km/2Km/.....Km

Land : Own ☐ Rent ☐

Area of the land (Larcham) 1/2/3/4..... larcham..... acre

Building : Permanent ☐ Temporary ☐

Area of the building (square feet)

* Mark the following available (✓) not available (x) available, but not as mentioned (•)

- * The building is used only for the Preschool ()
- * Not less than 20 square feet space for each child ()
- * 1/7th of the walls are for the doors and windows ()
- * Closer to disaster area, liquor shop, pond, river, market ()
- * Protective fencing or wall ()
- * Play area with shady trees (equipment for climbing, jumping, balancing and dancing ()
- * Boards to display the creative work of the children ()
- * Office room, store room, kitchen, sick room ()
- * Bathrooms at the ratio of 1:10 children ()
- * Boiled and cooled water for drinking purpose ()
- * Water facility to wash hands in the bathroom ()
- * Tables and chairs according to the number of the teachers ()
- * Appropriate sized tables and chairs according to the number of children ()
- * Cupboard to keep the documents ()
- * Cupboard and shelves to keep the toys ()
- * Blackboards on the walls ()
- * First aid box ()
- * Garden ()

Records

Teacher : Attendance	()
Bio data	()
Leave applied	()
Syllabus planning	()
Others	()
Children : Attendance	()
Development records	()

Admission form	()
Admission record	()
Health record	()

Others :

Financial records	()
Materials record	()
Incidents record	()
Administrative team report	()

Teachers :

1 : 15 ratio	()
O/L qualified	()
A/L qualified	()
Diploma in Pre-school qualified	()

.....
Signature of the service provider

Date :.....

Recommendation of the Assistant Director : Recommended/Not recommended

.....
Assistant Director.

Date :.....

Zonal Director's grant : granted/not granted

.....
Zonal Director.

Date :.....

Appendix I

Office use

Pre-school Application Form - 20.....

District :

Educational Zone :

Educational Division :

Name of the Pre-school :

Medium :

Address :

GS division and number :

Number of students :
(Minimum 15 students)

Organization that conducts the Pre-school :

Name of the person to be contacted :

Address :

Telephone Number :

Details of the Teachers

Name	Educational Qualification				Diploma	Monthly Salary	Providing Organization	Telephone Number
	Age	Service Period	O/L	A/L				

Physical Resources

Thearea of the Preschool 1/2 Km/1Km/2Km/.....Km

Land : Own ☐ Rent ☐

Area of the land (Larcham) 1/2/3/4..... larcham..... acre

Building : Permanent ☐ Temporary ☐

Area of he building (square feet).....

* Mark the following available (✓) not available (x) available, but not as mentioned (•)

- * The building is used only for the Pre-school ()
- * Not less than 20 square feet space for each child ()
- * 1/7th of the walls are for the doors and windows ()
- * Closer to disaster area, liquor shop, pond, river, market ()
- * Protective fencing or wall ()
- * Play area with shady trees (equipment for climbing, jumping, balancing and dancing ()
- * Boards to display the creative work of the children ()
- * Office room, store room, kitchen, sick room ()
- * Bathrooms at the ratio of 1:10 children ()
- * Boiled and cooled water for drinking purpose ()
- * Water facility to wash hands in the bathroom ()
- * Tables and chairs according to the number of the teachers ()
- * Appropriate sized tables and chairs according to the number of children ()
- * Cupboards to keep the documents ()
- * Cupboards and shelves to keep the toys ()
- * Blackboards on the walls ()
- * First aid box ()
- * Garden ()

The information given in this application is true and I certify that the establishment of pre-school is very essential.

.....
Signature of the service provider

Date :.....

Recommendation of the Assistant Director :

Recommended/Not recommended

.....
Assistant Director.

Date :.....

Zonal Director's grant :

Granted/not granted

.....
Zonal Director.

Date :.....

SCHEDULE III

Pre-school Teacher Registration form 20.....

1.	District	:							
2.	Education Zone	:							
3.	Division	:							
4.	GS Division and Number	:							
5.	Name and Address of the Pre-school	:							
6.	Full name of the teacher	:							
	a) In Tamil (Miss or Mrs.)	:							
	b) In English (Miss or Mrs.)	:							
7.	Postal address (own)	:							
8.	Marital status : (married/single/divorcee/widow)	:							
9.	Race : (Sri Lanka Tamil/Sinhalese/Muslim/Other)	:							
10.	Religion	:							
11.	Mother tongue	:							
12.	National Identity Card Number	:							
13.	Telephone Number	:							
14.	Date of Birth		<table border="1"> <tr> <td>Date</td> <td>Month</td> <td>Year</td> </tr> <tr> <td></td> <td></td> <td></td> </tr> </table>	Date	Month	Year			
Date	Month	Year							
15.	Age at 2015.01.01		<table border="1"> <tr> <td></td> </tr> </table>						

Service Period

<i>Number</i>	<i>Name of the Pre-school</i>	<i>From</i>	<i>to</i>	<i>Service Period</i>
1.				
2.				
3.				
4.				
5.				

Note : Appointment letter should be annexed.

16. Educational Standard

a) GCE (O/L)

First sitting

Second sitting

YearIndex No.

YearIndex No.

<i>No</i>	<i>Subject</i>	<i>Subject Result</i>
1.		
2.		
3.		
4.		
5.		
6.		
7.		
8.		
9.		
10.		

<i>No</i>	<i>Subject</i>	<i>Subject Result</i>
1.		
2.		
3.		
4.		
5.		
6.		
7.		
8.		
9.		
10.		

b) GCE (A/L)

YearIndex No.

<i>No</i>	<i>Subject</i>	<i>Result</i>
1.		
2.		
3.		
4.		

17. Specify other qualifications, if there are any :

Degree :

.....
.....
.....

18. Details about professional training :

<i>No</i>	<i>Obtained training</i>	<i>Provider</i>	<i>Year</i>	<i>Results</i>
1.	Certificate Course			
2.	Diploma in Pre-school Education			

Note : Copy of the Certificates should be annexed.

19. Organization that runs the Pre-school (should be mentioned properly) :

20. Salary drawn (in rupees) :

20.1 Provider :

I hereby assure that the above mentioned details are true.

.....
Signature of the Teacher.

.....
Signature of the President/Secretary of the Management Team (Rubber Stamp)

Telephone No.

I hereby assure that the above mentioned details are true.

.....
Assistant Director of Education

.....
Date

.....
Counter Signature

.....
Zonal Director

.....
Date

08-599